

Calendar Line 3**Case Name:** *Linda Dashiell v. Louie Goros et al.***Case No.** 24CV443503

Discovery in this matter has become increasingly contentious. The Court has conducted an Informal Discovery Conference and ruled on two Motions to Quash, limiting the scope of discovery. Yet the parties remain unable to resolve discovery disputes through meaningful meet-and-confer efforts. Twenty-four discovery items remain in dispute. The Court finds that continued piecemeal judicial resolution of recurring discovery disputes is unlikely to promote the efficient management of this litigation.

Accordingly, the Court finds that appointment of a discovery referee pursuant to Code of Civil Procedure section 639(a)(5) may be warranted to facilitate the orderly, efficient, and expeditious resolution of future discovery disputes and to conserve judicial resources.

The parties are strongly encouraged to meet and confer before the 7/31/26 hearing regarding the selection of a mutually agreeable discovery referee and, if agreement is reached, to be prepared to stipulate to the appointment of a referee pursuant to Code of Civil Procedure section 638.

If the parties are unable to reach agreement, the Court intends to appoint a discovery referee pursuant to Code of Civil Procedure section 639(a)(5). In that event, the Court will provide a list of three qualified discovery referees. Each side shall be permitted to strike one referee from the list, after which the Court will appoint one of the remaining referees. The Court's tentative allocation is that the referee's fees and costs shall be shared equally among the parties, subject to reconsideration upon a noticed application supported by competent evidence.

Counsel shall personally appear at the hearing on Friday, July 31, 2026 at 9:00 a.m. prepared to address the identity of any agreed-upon or proposed referee.

The Court will prepare the Order.

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Calendar Line 7

Case Name: *Bryana Manchester v. American Honda Motor Company, Inc., et al.*

Case No.: 24CV452135

Defendant American Honda Motor Company, Inc. (“Defendant” or “Honda”) moves for summary adjudication of Plaintiff Bryana Manchester (“Plaintiff”)’s first, second, third and fourth causes of action in her Complaint (“Complaint”).

Plaintiff’s evidentiary objections to the Declaration of Brandon Bell in Support of Defendant’s Motion for Summary Adjudication are **SUSTAINED**. Defendant’s evidentiary objections to the Declaration of Bryana Manchester and to the Declaration of Jordan Helene Bourque are **OVERRULED**. The motion for summary adjudication of Plaintiff’s first, third and fourth causes of action are **DENIED**. The motion for summary adjudication of Plaintiff’s second cause of action is **GRANTED**.

I. BACKGROUND

Plaintiff brings this action against Defendants American Honda Motor Company, Inc., and Does 1 through 50, inclusive, for claims related to Plaintiff’s purchase of a 2022 Honda Accord. (Complaint, ¶ 6.) Plaintiff alleges that on or about December 30, 2022, Plaintiff purchased a 2022 Honda Accord, which was “manufactured and/or distributed by Defendant.” (*Ibid.*) “In connection with the purchase of the [v]ehicle, Plaintiff received an express written warranty in which Defendant undertook to preserve or maintain the utility or performance of the Vehicle or to provide compensation if there is a failure in utility or performance for a specified period of time.” (Complaint, ¶ 10.)

During the warranty period, the infotainment system (“CarPlay”) and electrical system of Plaintiff’s vehicle developed defects in violation of the express written warranties and implied warranty of merchantability. (Complaint, ¶¶ 12, 13.) Plaintiff provided “Defendant and its representatives in this state sufficient opportunity to service or repair the vehicle,” but “Defendant and its representatives in this state were unable to and/or failed to service or repair the [v]ehicle within a reasonable number of attempts.” (Complaint, ¶¶ 14, 15.)

Plaintiff asserts five causes of action in her Complaint: (1) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (d); (2) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (b); (3) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (a)(3); (4) breach of express written warranty under Civil Code section 1791.2, subdivision (a) and section 1794; and (5) breach of implied warranty of merchantability under Civil Code sections 1791.1 and 1794.

On May 7, 2026, Defendant filed a motion for summary adjudication of the Complaint’s first, second, third, and fourth causes of action pursuant to Code of Civil Procedure section 437c. The motion is opposed. Defendant filed a reply and a supplemental declaration of counsel Brandon Bell in support of the motion for summary adjudication.

II. MOTION FOR SUMMARY ADJUDICATION

A. Legal Standard